

Aijaz Ahmad v. The Managing Director And 2 Others

High Court of Judicature at Allahabad · Division Bench · 4 August 2022 · Writ - C No. 17032 of 2022 · **Writ disposed of; petitioner relegated to para 6.8 objection with stay of coercive action.**

HEADNOTE

Without examining a demand notice on merits, the Allahabad High Court disposed of the writ, granting liberty to file an objection under para 6.8 of the U.P. Electricity Supply Code, 2005, directing time-bound disposal after hearing, and staying coercive recovery for eight weeks or until the objection was decided, whichever was earlier.

FACTUAL SUMMARY

Aijaz Ahmad petitioned the Allahabad High Court to quash a demand notice dated 12 March 2020 issued by the power distribution corporation and to restrain coercive recovery. On 15 June 2022 a Division Bench found no urgency and listed the matter as fresh in July. At the later hearing, counsel for the licensee stated on instructions that the petitioner could object to the demand, to be decided in a time-bound manner. The Court did not examine whether the demand was lawful.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to demand as alternate remedy

HOLDING

Without expressing any opinion on merits, a writ challenging a demand notice is disposed of with liberty to submit an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if so submitted, the licensee shall decide it in accordance with law after hearing, preferably within four weeks; no coercive action shall be taken for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 The Court declined merits review of the demand notice and relegated the consumer to the statutory objection under para 6.8 of the Supply Code. ¶ 1

assessment-6.8-alternate-remedy Challenge to the 12 March 2020 demand was left to the clause 6.8 objection rather than decided in writ. ¶ 1

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay If an objection is filed within four weeks, respondent No. 2 must decide it in accordance with law after hearing, preferably within four weeks, and coercive action is stayed for eight weeks or until disposal, whichever is earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE DEMAND NOTICE DATED 12.03.2020

The Court expressly declined to express any opinion on merits. ¶ 1